

2018 SCC OnLine All 855

In the High Court of Allahabad

(BEFORE MAHESH CHANDRA TRIPATHI AND NEERAJ TIWARI, JJ.)

Buddhesh Patel Petitioner

v.

State of U.P. and Another Respondents

Writ - C No. - 21993 of 2018

Decided on June 22, 2018

Counsel for Petitioner:- Pradeep Kumar

Counsel for Respondent:- C.S.C.

ORDER

1. Heard learned counsel for the petitioner and learned Standing Counsel for the State respondents.

2. Petitioner is before this Court with the request to quash the impugned order dated 29.05.2018 passed by Executive Engineer, Electricity Distribution Division, Purvanchal Vidyut Vitran Nigam Ltd., Maharajganj asking the petitioner to pay Rs. 36,217/- plus Rs. 40,000/- as Shaman Shulka.

3. Learned counsel for the petitioner submits that at no point of time any direct connection has been taken by the petitioner from the pole in question and the said fact has been appreciated by the the Executive Engineer concerned and the fine has been reduced to Rs. 36/217/- from Rs. 2,43,308/- and even the petitioner has applied for 5Kgt electricity connection but the same has not been accorded in favour of the petitioner till date and as such, this Court should come to the rescue and reprieve of the petitioner.

4. On the other hand, learned Standing Counsel has opposed the writ petition on the ground that on the spot inspection it has been found that direct connection has been taken by the petitioner to run the mill in question and thereafter the recovery certificate has been issued by the Department concerned and in case the petitioner has any grievance with regard to the said recovery proceeding, he can always approach to the Authority concerned by way of filing objection under Clause 6.5 of Electricity Supply Code 2005 and the same shall be decided at the earliest.

5. Considering the entire facts and circumstances of the case, this Court is of the considered opinion that as the petitioner is disputing the recovery proceeding, then he is at liberty to move an appropriate application/objection before the Executive Engineer, Electricity

Distribution Division, Purvanchal Vidyut Vitran Nigam Ltd., Maharajganj as per the provision contained under Clause 6.5 of Electricity Supply Code, 2005 and in case any such application is moved within a week's time, then this Court hopes and trust that the Authority concerned would proceed to pass appropriate order in further three weeks. It is made clear that till the disposal of the same, no coercive actions shall be taken against the petitioner.

6. With these observations, Writ Petition is disposed of.

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